

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20230930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND INC.

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND
EVERGREEN MARINE (SINGAPORE) PTE. LTD.,

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc¹. (“BBBY”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY, collectively with Evergreen, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report regarding the progress of discovery pursuant to the Presiding Officer’s Scheduling Order entered December 20, 2024 (the “Scheduling Order”).

On December 5, 2024, the Parties held a meet and confer regarding the progress of discovery. During that meeting, the Parties agreed on (1) the proposed order regarding treatment of confidential documents and information exchanged and used in this case through the Order Granting Joint Motion for Entry of Protective Order [D.I. 29] (the “Protective Order”) and (2) the

¹ BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023 by and through which Bed Bath & Beyond Inc. changed its corporate name to 20240930-DK-Butterfly-1, Inc.

Electronic Discovery Agreement, both of which were promptly filed. The Presiding Officer entered the Protective Order on December 6, 2024. Following a prior joint status report filed on December 12, 2024 and a conference with the Presiding Officer on December 16, 2024, the Presiding Officer entered the Scheduling Order.

Progress of Complainant regarding Discovery:

As of February 28, 2024, the Parties have substantially completed production of documents on a rolling basis, in accordance with the Scheduling Order. BBY has made five productions, including 192,981 documents total, as follows:

Vol. 1 – January 6, 2025, 2,598 documents, Bates numbers: BBY_EVERGREEN-0000000001 to BBY_EVERGREEN-0000005620

Vol. 2 – January 21, 2025, 9,760 documents, Bates numbers: BBY_EVERGREEN-0000005621 to BBY_EVERGREEN 0000033196

Vol. 3 – February 23, 2025, 77,798 documents, Bates numbers: BBY_EVERGREEN-0000033197 to BBY_EVERGREEN-0000413605

Vol. 4 – February 27, 2025, 51,223 documents, Bates numbers: BBY_EVERGREEN-0000413606 to BBY_EVERGREEN-0000971857

Vol. 5 – February 27, 2025, 51,602 documents, Bates numbers: BBY_EVERGREEN-0000971858 to BBY_EVERGREEN-0001380995

BBY is still reviewing and conducting diligence on less than 800 documents that have been identified as containing privileged material. BBY intends to include such documents in a privilege log and to make a further small production of redacted documents. BBY is continuing to review the productions that Evergreen made and to evaluate whether such productions adequately respond to BBY's discovery requests.

Progress of Respondent regarding Discovery:

Evergreen has made two productions, including 12,842 documents total, as follows:

Vol. 1 – December 13, 2024, 9,485 documents, Bates numbers: EVERGREEN-00025045 to EVERGREEN-000025045;

Vol. 2 – February 25, 2025, 3,357 documents, Bates numbers: EVERGREEN-000025046 to EVERGREEN-000036442.

Evergreen's third production, Vol. 3, contains 4,528 documents, and is queuing up to be transferred at the time of this report. Like BBY, Evergreen is still reviewing, conducting diligence and preparing for production of a number of documents that have been identified as containing material subject to confidentiality agreements. Evergreen intends to produce such documents with redactions, where appropriate, which are presently being made as quickly as possible. Evergreen is continuing to review the productions that BBY made and to evaluate whether such productions adequately respond to Evergreen's discovery requests.

In light of the above, the Parties are each working diligently with the goal of substantial completion of document productions on or around the present deadline for the completion of depositions by May 15, 2025 per the Scheduling Order. At this stage, the Parties anticipate that they will be reviewing the production of documents responsive to the initial document demands and scheduling depositions within the next month such that all depositions may be taken before May 15, 2025. The Parties will confer regarding the scope and timing for depositions on an ongoing basis.

Dated: March 7, 2024

Respectfully submitted,

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